

The Meghalaya Adaptation of Laws Orders

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[1.](#)

[Introduction.](#)

- Meghalaya as formed as the Autonomous State by virtue of the Assam Re-organisation (Meghalaya) Act, 1969 (Assam Act No. 55 of 1969) on and from the appointed day. Under Section 3 (1) of the said Act, within the State of Assam an Autonomous State, to be known as Meghalaya comprising of-

(1)

The United Khasi Jaintia Hills District as described in sub-paragraph (2) of paragraph 20 of the Sixth Schedule to the Constitution (exclusive of the proviso thereto) but excluding the areas transferred to Mikir Hills Autonomous District; and

(2)

the Garo Hills district specified in Part A of the table appended to para 20 of the Sixth Schedule to the Constitution of India, has been existed.

Under Section 5 of the North-Eastern Areas (Re-organisation) Act, 1971, on and from the appointed day, the State of Meghalaya was formed comprising of-

(a)

the territories which immediately before the appointed day were comprised in the autonomous State of Meghalaya formed under Section 3 of the Assam Re-organisation (Meghalaya) Act, 1969; and

(b)

so much of the territories comprised within the cantonment and Municipality of Shillong as did not form part of the Autonomous State;

and from such appointed day, the said territories ceased to form part of the existing State of Assam.

By virtue of Section 66 (2) of the Assam Re-organisation (Meghalaya) Act, 1969, for the purpose of facilitating the application in relation to the Autonomous State of any law made before the appointed day, the appropriate Government, may, within 2 years from that day, by order, made such adaptations or modifications of the law, whether by way of repeal or amendment, as may be necessary or expedient and thereupon any such law shall have effect subject to the adaptations and modifications so made until altered, repealed or amended by competent legislature or other competent authority.

In this section the expression "Appropriate Government" means as respects any law relating to a matter enumerated in the Union List in the Seventh Schedule to the Constitution, Central Government; as respects any law relating to a matter in the Second Schedule, the Government of Meghalaya; and as respects any other law, the Government of Assam.

Section 79 of the North-Eastern Areas (Re-organisation) Act, 1971, provides the power for adaptations and modifications of the law whether by way of repeal or modification, as may be necessary or expedient and thereupon such law shall have effect subject to the adaptations and modifications so made until altered, repealed or amended by a competent legislature or other competent authority.

Note - [For further details please refer to the respective provisions of the Assam Re-organisation (Meghalaya) Act, 1969 and North-Eastern Areas (Re-organisation) Act, 1971. Both the Acts have been printed in the subsequent volumes in alphabetical order].

So empowered under the respective provisions of these Acts, the Government of Meghalaya, has adapted various Laws, both Central and those applicable within the State of Assam comprising the areas within the State of Meghalaya presently.

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